

**SUPREME COURT OF THE STATE OF NEW YORK
COUNTY OF BRONX****X****PABLO ALVARADO**

Plaintiff,

- against -

THE CITY OF NEW YORK, THE NEW YORK CITY
POLICE DEPARTMENT, P.O. MIGUEL RODRIGUEZ,
SHIELD NO. 18513, IN HIS INDIVIDUAL CAPACITY.

Defendants,

X**Index No.****Date Index Number Purchased**

March 21, 2023

Plaintiff Designates Bronx County
as Venue for Trial Pursuant to CPLR
Section 503

Jury Trial Demanded

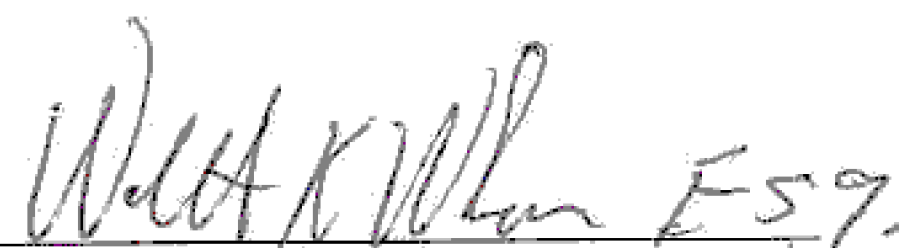
You are hereby Summoned to answer the Complaint in this action and to serve a copy of

your answer or if the Complaint is not served with this summons, to serve a notice of appearance on the Plaintiff's Attorney(s) within 20 days after the service of this summons, exclusive of the day of service (or within 30 days after the service is complete if this summons is not personally delivered to you within the State of New York) and in case of your failure to appear or answer, judgment will be taken against you by default for the relief demanded in the complaint.

DATED: March 21, 2023

Bronx, New York

By



Welton K. Wisham, Esq.

The Law Offices of Welton K. Wisham
1200 Waters Place, Suite 105
Bronx, New York 10461
718- 924-3557 Office

Defendants Address:

The New York City Police Department
One Police Plaza,
York, New York 10007City of New York Department of Law
100 Church Street
New York, New York 10007

**SUPREME COURT OF THE STATE OF NEW YORK
COUNTY OF BRONX** **X****PABLO ALVARADO**

Plaintiff,

- against -

THE CITY OF NEW YORK, THE NEW YORK CITY
POLICE DEPARTMENT, P.O. MIGUEL RODRIGUEZ,
SHIELD NO. 18513, IN HIS INDIVIDUAL CAPACITY.

Defendants,

Index No.

ECF

COMPLAINT**Plaintiff Designates Bronx
County as the Place of Trial
Jury Trial Demanded****X**

Plaintiff, Pablo Alvarado, by his attorney, Welton K. Wisham, Esq., of The Law office of Welton K. Wisham, for his Complaint, alleges upon information and belief the following against Defendants, The City of New York, The New York City Police Department, and Police officer Miguel Rodriguez who is believed to be assigned to the 43rd police precinct on the date the incident complained of herein.

PRELIMINARY STATEMENT

1. This action arises out of Defendants' role in Plaintiff's unreasonable search, seizure, arrest, malicious prosecution and violation of Plaintiff's rights arising under the Due Process Clause of the Fourteenth Amendment to the Constitution of the United States.

2. On November 6, 2021, at approximately 11:30 pm, Mr. Alvarado was leaving his home on Thieriot Ave, Bronx, New York to purchase goods from a local bodega when he was suddenly approached by two unknown New York City Police officers.

3. The officers got out of their marked police vehicle and immediately approached Mr. Alvarado and grabbed Mr. Alvarado from behind and proceeded to place handcuffs around Plaintiff's hands behind his back.

4. The officers did not inform Mr. Alvarado of his rights nor did the officers inform Plaintiff the purpose of his arrest.

5. That after Mr. Alvarado was placed in handcuffs, one of the officers asked the Plaintiff what Mr. Alvarado was doing outside.

6. Plaintiff informed the officers that he had just purchased an item from the store and that the item was inside his pocket.

7. The officers then asked Mr. Alvarado whether he had any outstanding warrants.

8. Mr. Alvarado told the officers that he had no such warrants.

9. That the officers removed Mr. Alvarado's identification and proceeded to run a background check on their computers pertaining to whether there was any outstanding warrant on the Plaintiff.

10. Alvarado had no outstanding warrants.

11. The officers informed the Plaintiff that someone had identified Mr. Alvarado as the person who had committed a robbery.

12. Mr. Alvarado vehemently denied that he was involved in any such robbery and that the officers had arrested the wrong person.

13. One of the officers, believed to be officer Miguel Rodriguez, the arresting officer, drove Plaintiff to the 43rd police precinct.

14. Mr. Alvarado was fingerprinted and photographed and placed in a jail cell.

15. One of the officers, believed to be officer Rodriguez told Mr. Alvarado that there was a video recording showing Mr. Alvarado in the commission of a robbery.

16. That Mr. Alvarado again denied that he was in a video committing a robbery and demanded to see the video.

17. Officer Rodriguez refused to show the alleged video to Mr. Alvarado at the precinct. Claimant was then taken to Central Booking at 161st Bronx, New York where he remained for approximately twenty-four hours until his arraignment.

18. Officer Rodriguez charged Mr. Alvarado with Attempted Grand Larceny 4th Degree, P.L. Section 110-115.30.08, Attempted Grand Larceny 4th Degree, P.L. 110-155.30.05, Menacing 2nd Degree, P.L. 120.14.01, Attempted Petit Larceny, P.L. Section 110-155.25, Menacing 3rd Degree, P.L. Section 120.15, Harassment end Degree, P.L. Section 240.26(1), and Criminal Possession of a Weapon, P.L. Section 265.01(2).

19. All charges were baseless and were favorable dismissed in Bronx Criminal Court on February 9, 2021, upon motion of the Bronx District Attorney.

20. Mr. Alvarado was never placed in a show up or line up for possible identification as a suspect in any crime.

21. Officer Rodriguez failed to produce any form of credible, reliable and objective information to the Bronx District Attorney's Office which identified Mr. Alvarado as the perpetrator of the crimes alleged in the preceding paragraph.

22. Plaintiff was deprived of his liberty for two days without probable cause.

23. Officer Rodriguez intended to confine Mr. Alvarado and deprive Plaintiff of his rights and privileges under the Constitution of the United States without probable cause.

24. Officer Rodriguez acted without privilege when he searched, seized and commenced the prosecution of the Plaintiff for which this action is brought pursuant to 42 U.S.C. Section 1983, for the violation of Plaintiff's rights arising under the Fourth and Fourteenth Amendment to the Constitution of the United States and pursuant to Article I Section 12 of the Constitution of the State of New York for injuries Plaintiff suffered by the Defendants.

JURISDICTION AND VENUE

25. This Court has personal jurisdiction over the Defendants because the Defendants committed a tortuous act against the Plaintiff inside the State of New York, Bronx, County which caused serious injury to the Plaintiff, a resident of the State of New York.

26. This action arises under the Fourth and Fourteenth Amendment to the Constitution of the United States pursuant to 42 U.S.C Section 1983 and under Article I Section 12 of the Constitution of the State of New York.

27. This Court has concurrent jurisdiction over Plaintiff's federal civil rights causes of action based on 42 U. S. Code Section, 1983.

28. Venue is proper in this Court pursuant to CPLR Section 503. Bronx County is the place for trial by jury because the Plaintiff was at all times relevant herein a resident of the State of New York and because Bronx County is the County for which the events giving rise to the causes of action complained of occurred.

PARTIES

29. Plaintiff, Pablo Alvarado was and still remains at all relevant times a resident of the State of New York.

30. Mr. Alvarado is a citizen of the United States.

31. Defendant, City of New York is a municipal corporation duly organized under the laws of the State of New York.

32. At all times relevant and set forth herein, the City of New York acting through the New York City Police Department was responsible for the policies, practices, training, supervision and conduct of the Defendant, police officer Miguel Rodriguez.

33. The City of New York is responsible for enforcing the rules of the New York City Police Department and the police officers within the New York City Police Department and for ensuring that the Defendants police officers named herein and all other New York City Police Officers obey the laws of the State of New York and the laws of the Constitution of the United States.

34. That at all relevant times Defendant, Miguel Rodriguez was acting under the color of state law and within the scope of his employment with the New York City Police Department.

35. At all times relevant herein the Defendants, as police officers of the City of New York, were and still remain police officers employed by the New York City Police Department who acted in the capacity of agent, servant and employee of the City of New York, New York City Police Department and acted within the scope of their employment and as such acted under color of state law.

JURY DEMAND

36. Plaintiff demands trial by jury.

NOTICE OF CLAIM

37. Plaintiff, in furtherance of his New York State causes of action, Mr. Alvarado filed a timely Notice of Claim on or about March 12, 2022, well within ninety days of the incident alleged herein against the named Defendants and the City of New York in compliance with General Municipal Law Section 50-e.

38. The Comptroller of the City of New York acknowledge receipt of Mr. Alvarado's Notice of Claim by assigning claim number 2020PI004567.

39. That on June 13, 2022, Mr. Alvarado appeared for a 50-H Hearing via zoom

40. That more than 30 days have elapsed since service of said notice, and the City has failed to pay or adjust the claim.

41. That on June 13, 2022, Mr. Alvarado appeared for a 50-H Hearing via zoom.

42. This action has been commenced within one year and ninety days of the date of the incident complained of and of the filing of the notice of claim.

43. That the Defendants have wholly refused and neglected to make any adjustment or payment thereof.

44. That the Plaintiff has satisfactorily complied with all pertinent statutory requirements prior to the commencement of this action.

45. That by reason of the foregoing, Plaintiff Pablo Alvarado has been damaged in a sum which exceeds the jurisdictional limits of all lower courts, which otherwise would have jurisdiction over this action.

STATEMENT OF FACTS

46. On November 6, 2021, at approximately 11:30 pm, Mr. Alvarado was leaving his home on Thieriot Ave, Bronx, New York to purchase goods from a local bodega six blocks from his home when he was suddenly approached by two unknown New York City Police officers.

47. The officers got out of their marked police vehicle and immediately approached Mr. Alvarado and grabbed Mr. Alvarado from behind and proceeded to place handcuffs around Plaintiff's hands behind his back.

48. The officers did not inform Mr. Alvarado of his rights nor did the officers inform Plaintiff the purpose of his arrest.

49. That after Mr. Alvarado was placed in handcuffs, one of the officers asked the Plaintiff what Mr. Alvarado was doing outside.

50. Plaintiff informed the officers that he had just purchased an item from the store and that the item was inside his pocket.

51. The officers then asked Mr. Alvarado whether he had any outstanding warrants.

52. Mr. Alvarado told the officers that he had no such warrants.

53. That the officers removed Mr. Alvarado's identification and proceeded to run a background check on their computers pertaining to whether there was any outstanding warrant on the Plaintiff.

54. Alvarado had no outstanding warrants.

55. The officers informed the Plaintiff that someone had identified Mr. Alvarado as the person who had committed a robbery.

56. Mr. Alvarado vehemently denied that he was involved in any such robbery and that the officers had arrested the wrong person.

57. One of the officers, believed to be officer Miguel Rodriguez, the arresting officer, drove Plaintiff to the 43rd police precinct.

58. Mr. Alvarado was fingerprinted and photographed and placed in a jail cell.

59. One of the officers, believed to be officer Rodriguez told Mr. Alvarado that there was a video recording showing Mr. Alvarado in the commission of a robbery.

60. That Mr. Alvarado again denied that he was in a video committing a robbery and demanded to see the video.

61. Officer Rodriguez refused to show the alleged video to Mr. Alvarado at the precinct. Claimant was then taken to Central Booking at 161st Bronx, New York where he remained for approximately twenty-four hours until his arraignment.

62. Officer Rodriguez charged Mr. Alvarado with Attempted Grand Larceny 4th Degree, P.L. Section 110-115.30.08, Attempted Grand Larceny 4th Degree, P.L. 110-155.30.05, Menacing 2nd Degree, P.L. 120.14.01, Attempted Petit Larceny, P.L. Section 110-155.25, Menacing 3rd Degree, P.L. Section 120.15, Harassment end Degree, P.L. Section 240.26(1), and Criminal Possession of a Weapon, P.L. Section 265.01(2).

63. All charges were baseless and were favorable dismissed in Bronx Criminal Court on February 9, 2021, upon motion of the Bronx District Attorney.

64. Mr. Alvarado was never placed in a show up or line up for possible identification as a suspect in any crime.

65. Officer Rodriguez failed to produce any form of credible, reliable and objective information to the Bronx District Attorney's Office which identified Mr. Alvarado as the perpetrator of the crimes alleged in the preceding paragraph.

66. Officer Rodriguez evidentially informed Mr. Alvarado that someone had alleged that he had stolen a motorcycle. Hours later the officer informed Plaintiff that he was charged with stealing a car. No evidence was ever produced.

67. Plaintiff was deprived of his liberty for two days without probable cause.

68. Officer Rodriguez intended to confine Mr. Alvarado and deprive Plaintiff of his rights and privileges under the Constitution of the United States without probable cause.

69. Officer Rodriguez acted without privilege when he searched, seized and commenced the prosecution of the Plaintiff for which this action is brought pursuant to 42 U.S.C. Section 1983, for the violation of Plaintiff's rights arising under the Fourth and Fourteenth Amendment to the Constitution of the United States and pursuant to Article I Section 12 of the Constitution of the State of New York for injuries Plaintiff suffered by the Defendants.

70. Plaintiff was traumatized from the events described above and continues to have constant fear of the New York City Police Department and its police officers.

71. Mr. Alvarado was caused to suffer embarrassment, humiliation and degradation by the Defendants' unlawful acts set forth in the preceding paragraphs.

**AS AND FOR A FIRST CAUSE OF ACTION AGAINST POLICE OFFICER
MIGUEL RODRIGUEZ FOR FALSE ARREST AND FALSE IMPRISONMENT
PURSUANT TO 42. U. S.C. SECTION 1983**

72. That Plaintiff repeats, reiterates and realleges each and every allegation contained in Paragraphs Numbered "1" through " 71", with the same force and effect as though more fully set forth at length herein.

73. That at all time herein mentioned Defendant Police Officer Miguel Rodriguez, falsely arrested, imprisoned and unreasonably seized Mr. Alvarado on November 6, 2021, as Plaintiff was leaving his home located at 1562 Thieriot Ave, Bronx New York. The incident occurred at approximately 11:30pm.

74. That officer Rodriguez seized Mr. Alvarado outside a commercial store as Plaintiff was leaving a local bodega when he was suddenly approached by two unknown New York City Police officers in marked police vehicles.

75. Upon information and belief, Defendants failed to obtain a written Affidavit from the accuser accusing Plaintiff of a crime.

76. That Plaintiff Alvarado was not presented in a line- up or show up supporting probable cause for officer Rodriguez to have reasonably believed that Plaintiff had committed crimes for which Plaintiff was arrested.

77. That the Defendant officer caused Mr. Alvarado to be held in custody for forty-eight hours without probable cause.

78. Mr. Alvarado was conscious of his detention, arrest, and seizure and did not consent to his confinement.

79. That the Defendant police officers, knew or should have known that they lacked probable cause to arrest and seized the Plaintiff and that Plaintiff had not been engaged in any criminal activity at the time of his arrest.

80. Mr. Alvarado was wrongfully and unjustifiably held against his will and unreasonably seized, and deprived of his liberty without due process of law.

81. Officer Rodriguez abuse his authority and position as New York City Police officer.

82. That officer Rodriguez knowingly and willfully deprived Mr. Alvarado of Plaintiff's right to liberty and freedom under the Fourth and Fourteenth Amendments to the Constitution of the United States, secured by 42 U.S.C Section 1983.

83. The Defendant officers' actions were willful , wanton and reckless.

84. That during Plaintiff's unlawful and wrongful incarceration, Mr. Alvarado was forcibly handcuffed, searched, and subjected to humiliation and personal degradation, abuse, emotional distress, trauma, embarrassment, ridicule, and scorn, by Defendant Rodriguez.

85. As a direct and proximate result of Officer Rodriguez's misconduct and abuse of authority described above, Plaintiff Pablo Alvarado suffered emotional pain and distress for which he now seeks compensation which exceeds that of all lower jurisdictions.

**AS AND FOR A SECOND CAUSE OF ACTION AGAINST POLICE OFFICER
MIGUEL RODRIGUEZ FOR VIOLATING PLAINTIFFS' RIGHT TO BE FREE FROM
UNREASONABLE SEARCH AND SEIZURE PURSUANT TO 42 U.S CODE SECTION
1983.**

86. That Plaintiff repeats, reiterates and realleges each and every allegation contained in Paragraphs "1 through "85," with the same force and effect as though more fully set forth at length herein.

87. Plaintiff in this instant action commenced this lawsuit against the Defendants pursuant to 42 U.S.C Section 1983 which states in relevant part that:

Every person who, under color of any statute, ordinance, regulation, custom, or usage, of any State or Territory or the District of Columbia, subjects, or causes to be subjected, any citizen of the United States or other person within the jurisdiction thereof to the deprivation of any rights, privileges, or immunities secured by the Constitution and laws, shall be liable to the party injured in an action at law, suit in equity, or other proper proceeding for redress... 42 U.S.C Section 1983,

88. Plaintiffs' federal claims are brought pursuant to the Fourth Amendment to the Constitution of the United States for the Defendants unreasonable search and seizure of Plaintiff Pablo.

89. Defendant, Miguel Rodriguez violated Plaintiffs' Constitutional rights under the Fourth Amendment by grabbing Mr. Alvarado and placing Plaintiff's hands behind his back and placing handcuffs around Plaintiff's hands as Plaintiff was lawfully walking down a public street.

90. Officer Rodriguez lacked of probable cause to reasonably believe that Plaintiff had engaged in criminal activity at the time of his arrest.

91. That the manner in which the Plaintiff was seized and held in custody was unreasonable under the circumstances as set forth herein.

92. That the Defendant officer conspired together with other New York City Police officers to violate Plaintiffs' rights to be free from unreasonable search, seizure and deprived Plaintiff of his liberty without due process of law.

93. That in the manner described herein, the Defendants acted with deliberate indifference and with reckless disregard to Plaintiff's Constitutional rights.

94. Mr. Alvarado was deprived of his rights, privileges and immunities secured to him under the Constitution and laws of the United States, and the State of New York including but

not limited to the Plaintiffs' rights secured under the Fourth, and Fourteenth Amendment to the Constitution of the United States, and pursuant to Article I, Section 12 of the Constitution of the State of New York.

95. That the officer Miguel Rodriguez acted in his individual, and official capacity, and under color of law, conspired together and with others, and reached a mutual understanding to undertake a course of conduct that violated Plaintiff's rights, privileges, and immunities thereof.

96. As a direct and proximate result of the aforementioned misconduct Mr. Alvarado was unreasonably searched, seized, and falsely imprisoned in violation of Plaintiff's rights under the Fourth, and Fourteenth Amendments to the Constitution of the United States.

97. By reason of the foregoing, Plaintiff, Pablo Alvarado was intentionally confined without privilege and without probable by the Defendant, police officer Miguel Rodriguez.

98. As a consequence thereof, Plaintiff Alvarado has been greatly injured.

**AS AND FOR A THIRD CAUSE OF ACTION AGAINST THE CITY OF NEW
YORK AND POLICE OFFICER MIGUEL RODRIGUEZ PURSUANT TO 42
U.S.C SECTION 1983, FOR VIOLATING PLAINTIFF'S RIGHTS PROTECTED
UNDER THE DUE PROCESS CLAUSE OF THE FOURTEENTH AMENDMENT
TO THE CONSTITUTION OF THE UNITED STATES**

99. That Plaintiffs repeats, reiterates and realleges each and every allegation contained in Paragraphs "1 through "98", with the same force and effect as though more fully set forth at length herein.

100. That the Defendants have employed a gross abuse of power, unfair procedures and gross violation of Plaintiffs' right to free from the deprivation of liberty without due process of law.

101. That the Defendant Officer's detainment and seizure of the Plaintiff, including the unreasonable and unlawful imprisonment of the Plaintiff, deprived Plaintiff of his right to liberty for approximately forty-eight hours (48) without probable cause or legal justification.

102. As direct and proximate result of the Defendant officers' conduct, Plaintiffs' rights to Due Process of Law were violated causing Plaintiff to suffer humiliation, degradation,

**AS AND FOR A FOURTH CAUSE OF ACTION AGAINST THE CITY OF NEW YORK
PURSUANT TO COMMON LAW STATE OF NEW YORK UNDER RESPONDEAT
SUPERIOR**

103. That Plaintiff repeats, reiterates and realleges each and every allegation contained in Paragraphs Numbered " 1" through "102", with the same force and effect as though more fully set forth at length herein.

104. That the City of New York hired and supervised Defendant, Miguel Rodriguez as a New York City Police officer who seized, arrested and commenced the prosecution of Plaintiff Pablo Alvarado without probable cause.

105. That officer Rodriguez committed the wrongs stated herein without probable cause, and without legal justification while acting under color of law and within the scope of his employment with the New York City Police Department.

106. As a result, the City of New is liable for the unlawful acts of their employees including officer Rodriguez under the well settled and legally recognized doctrine of Respondeat Superior.

**AS AND FOR A FIFTH CAUSE OF ACTION AGAINST POLICE OFFICER
RODRIGUEZ FOR THE INTENTIONAL INFLICTION OF EMOTIONAL STRESS
PURSUANT TO THE COMMON LAW OF THE STATE OF NEW YORK.**

107. That the Plaintiff repeats, reiterates and realleges each and every allegation contained in Paragraphs Numbered " 1" through "106" with the same force and effect as though more fully set forth at length herein.

108. That the Defendant, Miguel Rodriguez as an agent, servant and/or employee of the New York City Police Department, engaged in actions for which the officer intended to inflict emotional trauma on the Plaintiff,

109. That Plaintiff Alvarado suffered emotional distress from the wrongful imprisonment caused by officer Rodriguez's misconduct set forth in the proceeding paragraphs.

110. That by reason of the foregoing, the Plaintiff has suffered mental and emotional distress due to Defendants' unlawful and reckless actions as more fully described herein.

111. That the misconduct as more fully described above inflicted by police officer Rodriguez was extreme and outrageous conduct, and intended to cause severe emotional distress.

112. The acts committed against the Plaintiff by the Defendant police officers were intended to cause the Plaintiff extreme physical damage to his mind and body.

113. That as a direct and proximate result of the misconduct and abuse of authority by Defendant police officer, Rodriguez, Plaintiff Pablo Alvarado has been injured and has sustained the damages hereinbefore alleged.

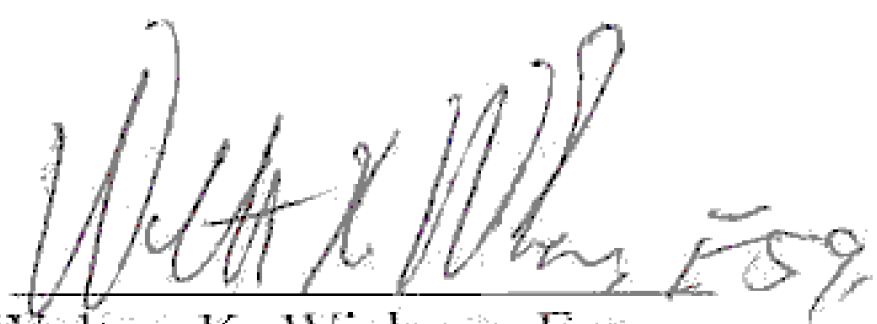
114. As a direct and proximate result, Mr. Alvarado suffered the injuries and damages described above.

WHEREFORE , Plaintiff demands judgment and relief against Defendants jointly and severally as follows:

- A. Awarding Plaintiff compensatory damages in an amount that is fair and equitable to be fixed at trial.
- B. Awarding punitive damages to Plaintiff in an amount that would punish Defendants for the willful, wanton, reckless and malicious misconduct alleged in this Complaint that would effectively deter Defendants from future civil rights violations and other unlawful behavior in an amount to be determined at trial.
- C. An award to Plaintiff of the costs and disbursements herein.
- D. An award of reasonable attorney fees under 42 U.S.C. Section 1988.
- E. Granting such other and further relief as this Court may deem just and proper.

Dated: March 21, 2023

Bronx, New York

By 
Welton K. Wisham, Esq.
The Law Office of Welton K. Wisham
1200 Waters Pl., Suite 105
Bronx, New York 10461
(718) 924- 3557 Office
(718) 678-8062 Fax
Attorney for the Plaintiff
Email: wkwisham@optonline.net

SUPREME COURT OF THE STATE OF NEW YORK
COUNTY OF BRONX _____ X

PABLO ALVARADO

AFFIDAVIT

Plaintiff,

- against -

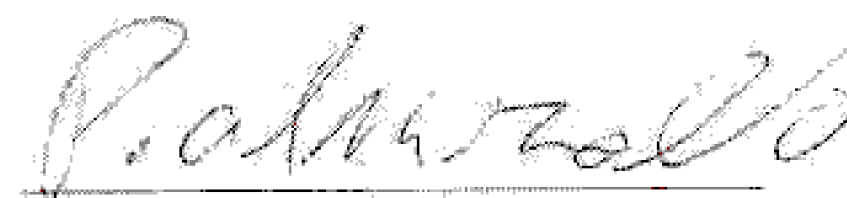
THE CITY OF NEW YORK, THE NEW YORK CITY
POLICE DEPARTMENT, P.O. MIGUEL RODRIGUEZ,
SHIELD NO. 18513, IN HIS INDIVIDUAL CAPACITY.

Defendants,

_____ X

STATE OF NEW YORK)
) ss.:
COUNTY OF BRONX)

I, **Pablo Alvarado**, , duly sworn, deposes and says under penalty of perjury that
Deponent is the Plaintiff in the within action, that I have read the foregoing Summons and
Complaint and knows the contents thereof; that the same is true to deponent's own knowledge,
except as to those matters therein stated to be alleged on information and belief, and that as to
those matters deponent believes them to be true.


Pablo Alvarado
1562 Thieriot Ave. Apt 3L
Bronx, New York 10460

Sworn to before me

This 20th day of March, 2023

NOTARY PUBLIC

